

ALABAMA AGENCY RECORD-CHALLENGE PREPARATION GUIDE

ROUTE: obligation:research-decision-route:AL:al-uncharged-arrest:agency_record_challenge
THIS IS AN AGENCY-APPLICATION PREPARATION GUIDE, NOT AN OFFICIAL FORM AND
NOT A COURT FILING.

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USE THIS ROUTE ONLY FOR A RECORD ERROR

This route corrects or supplements inaccurate, incomplete, misleading, or misassigned criminal-justice information. It is not a general expungement remedy for an accurate arrest merely because no charge followed.

If the record is accurate and the goal is expungement, stop: Alabama's separate Title 15 expungement route must be assessed instead. Identity theft or disputed biometrics begins with agency correction and moves to counsel if unresolved.

AGENCY SEQUENCE

Obtain and review the Alabama criminal-history record. Identify the precise challenged entry and assemble identity verification, fingerprints if the agency requires them, and certified proof of the correct disposition.

Confirm the current challenge procedure with ALEA/ACJIC or the originating criminal-justice agency and use exactly that procedure. The committed record says the challenge ordinarily must begin within one calendar year after AJIC's response to the criminal-history application.

If the agency denies the challenge, keep the denial and follow the recorded written administrative appeal to the AJIC Director. A de novo circuit-court route exists only after a final Commission decision and is a separate packet; the recorded court window is 30 days after receipt or service of that final decision.

FACTS YOU MUST CONFIRM BEFORE ACTING

ALEA/ACJIC or originating agency that holds the challenged entry:

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Check with: the criminal-history record and that agency's records unit

Challenged criminal-history entry:

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Check with: the participant's Alabama criminal-history record

Why the entry is inaccurate, incomplete, misleading, or misassigned:

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Check with: the record itself and the participant's certified disposition or identity proof

Certified proof of the correct disposition:

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Check with: the clerk of the court that disposed of the matter

Current agency submission method and destination:

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Check with: ALEA/ACJIC or the originating agency

PROTECTED ITEMS

Do not sign or date this guide. Sign and date only the agency's own request or application, in the manner that agency directs.

No court, clerk, prosecutor, agency, notary, or hearing-officer field is completed anywhere in this guide.

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